

INSTRUCTIONS TO BIDDERS

1. Locations for the Supply, Installation, Commissioning, Warranty/Support Services.

The entire solution as described in Scope of Work must be supplied, installed, commissioned & supported at:

Central Bureau of Investigation,

Plot No 5-B, CGO Complex,

Lodhi Road, New Delhi-110003

2. Site Survey

The vendors who wish to visit the proposed site of UPS solution deployment for the survey may contact the following person for obtaining prior permission from SP(Systems), CBI to visit the site on any working day (Monday to Friday excluding gazette holidays) between 10:00 am to 04:00 pm until 1 week after releasing of the bid.

Contact Person

Sh. Pankaj Kumar

Email: pankaj.k@cbi.gov.in

Phone: 011-24302700 {Extn(s) 3650, 2670}

It is the responsibility of the bidder to arrange for the skilled team to understand the existing electrical distribution system along with the existing power arrangement so that the offered solution is in line with the requirements of CBI. Any equipment/service required for executing the project and not listed in this RFP, will be bidder's responsibility. The bidder must take into account all such costing while submitting bids.

While requesting for Site-Survey, Bidders shall provide undertaking from Authorized signatory in the format attached as **Annexure-S** along with request for survey to be sent to ssa@cbi.gov.in.

3. Local Conditions

- a. It will be incumbent upon each bidder to fully acquaint himself with the local conditions and other relevant factors at the proposed installation site along with the existing fiber cabling and any passive component which would have any effect on the performance of the contract and / or the cost.

- b. The bidder is expected to make a site survey to apprise himself and obtain all information that may be necessary for preparing the bid and entering into contract.
- c. Failure to obtain the information necessary for preparing the bid and/or failure to perform activities that may be necessary for providing the services before entering into contract, will in no way relieve the successful bidder from the responsibility of performing any work in accordance with the tender documents.
- d. It will be imperative for each bidder to diligently be informed of all legal conditions and factors which may have any effect on the execution of the contract as described in the bidding documents.
- e. CBI shall not entertain any request for clarifications from the bidder regarding above conditions.
- f. It is the responsibility of the bidder that such factors have properly been assessed and considered while submitting the bid proposals and that no claim whatsoever including those for financial adjustment to the contract awarded under the bidding documents will be entertained by CBI and that neither any change in the time schedule of the contract nor any financial adjustments arising thereof shall be permitted on account of failure of the bidder to appraise himself of local laws and site conditions or otherwise.

4. Right to amend / cancel

At any time prior to the last date of submission of bids, CBI reserves the right to modify the bid document by release of Corrigendum, for any reason, whether on its own initiative or in response to the clarification request by a prospective bidder.

CBI reserves the right to cancel the entire bid without assigning any reasons thereof.

5. Precautions while preparing the Bids

Bidder should avoid, as far as possible, corrections, overwriting, erasures or postscripts in the bid documents. In case however, any corrections, overwriting, erasures or postscripts have to be made in the bids, they should be supported by dated signatures of the same authorized person signing the bid documents. In case of discrepancies and/ or calculation errors, if any, the lower unit prices and amounts shall only be considered for comparison of bids.

6. Completeness of Response

- a. Bidders are advised to study this RFP document carefully before submitting their proposals in response to this RFP. Submission of a proposal in response to this RFP shall be deemed to have been done after careful study and examination of this document with full understanding of its terms, conditions and implications.
- b. A bid shall be considered Responsive only when the bidder's response to this RFP is full and complete in all respects including the compliance sheet.

- c. Failure to furnish all the information required in this RFP or submission of a proposal not responsive to the RFP in all aspects will be at the bidder's risk and may result in rejection of the bidder's Proposal.

7. Disqualification

- a. Proposal not submitted in accordance with the procedure and formats prescribed in this document or treated as non-conforming proposal.
- b. The bidder qualifies the bid with his own conditions
- c. Bid is received in incomplete form
- d. Bid is not accompanied by all the requisite documents
- e. Information submitted in technical bid is found to be misrepresented, incorrect or false, accidentally, unwittingly or otherwise, at any time during the processing of the agreement (no matter at what stage) or during the tenure of the agreement including the extension period if any
- f. Commercial proposal is uploaded as part of technical proposal.
- g. Mismatch of Bill of quantities in Priced (to be submitted with Commercial bid) and Unpriced BoQ (to be submitted with Technical Bid) document.
- h. Bidder tries to influence the proposal evaluation process by unlawful/corrupt/fraudulent means at any point of time during the bid process.

8. Late Bids

- a. CBI shall not be responsible and liable for the delay in receiving the bid for whatsoever reason.
- b. CBI will not be responsible for any issues arising/pertaining with GeM Portal (www.gem.gov.in) for non-submission, failure in submission of bids on-line.
- c. Bidders are advised to submit e-bids well in advance of the last date and time of submission.
- d. CBI will not be responsible for failure in submission/upload of bids for non-working of the on line portal at last day/hours of submissions of bids.

9. Technical Bid Document

Bidders must submit duly filled Technical Bid covering the following:

1.	Details of Proposed Solution	
2.	Printed Datasheets of the Principal Manufacturer of: • UPS • Battery • Isolated Transformer • Precision AC • Electrical Cables – Distribution and Input/Output Cables	
3.	Manufacturer's Authorization Form (MAF) for UPS, Battery, Isolation Transformer and Precision AC	
4.	Floor Plan/Layout of the Solution	
5.	General Arrangement Drawings of: • UPS • Battery and • Precision AC	
6.	Electrical Drawings	
7.	Security Features including Rodent Protection	
8.	Unpriced Bill of Quantities	
9.	Malicious Code Certificate	
10.	Certifications/Compliances as indicated in the Technical Specifications	

10. Other Documents to be included in Bid

Apart from the documents mentioned in the Para 9 above, following checklist may be ensured by the bidders:

1.	Letter of Acceptance of Tender Conditions as per format at Annexure-A	
2.	EMD in the form of Bank Guarantee	
3.	Undertaking reg. Financial Standing as per format at Annexure-B	
4.	Documents pertaining to Annual Turnover for last three years	

5.	Documents pertaining to Past Experience	
6.	Undertaking regarding Land Border Sharing Clause as per format at Annexure-C	
7.	Declaration for Code of Integrity & conflict of interest as per format at Annexure-D	
8.	Self-Declaration on MII Local Content along with Place(s) of value addition as per format at Annexure-E	
9.	Fall Clause as per format at Annexure-F	
10.	Escalation Matrix	
11.	Dedicated Toll-Free Number	
12.	Certificate of Incorporation	
13.	Documentary proof regarding Office in Delhi NCR	

Date:

Tender No.....

To

SP(Systems)

System Division,

CBI, HO, New Delhi

I/We are interested in Site Survey prior to participating in the bid.

I/We declare that I/We have read the conditions in the Pre-Qualification Criteria document and I/We are eligible for participating in the bid as per the criteria mentioned therein.

I/We are allowed for Site Survey at CBI Headquarter, I/We ensure to produce the relevant documents along with OEM certificate at the time of bidding.

I/We accept that I/We may be disqualified from bidding for any contract with you if I am /We are in a breach of any obligation under the bid conditions.

Dated _____(insert date of signing)

Place_____

Name

Designation

Company/Firm Address

Signature

(of Authorized Signatory)

Corporate Seal (where appropriate)

Format for declaration by the Bidder for Acceptance of Bid Conditions

(On the Letter of the Bidder)

Ref.No:_____

Date:_____

To,

(Name & address of the Purchaser)

Sir,

With reference to your Tender No._____ dated_____

I/We, M/s. are participating in above mentioned tender. We are accepting all special, generic and additional terms and conditions as mentioned in tender NIT document.

I/We also declare that our offered product is complying with technical specifications mentioned for that product.

I/We have also enclosed all the Documents/Certificates as required in the Bid.

Name

Designation

Company/Firm Address

Signature

(of Authorized Signatory)

Corporate Seal (where appropriate)

Format for Undertaking for Financial Standing

(On the Letter of the Bidder)

Ref.No:_____

Date:_____

To,

(Name & address of the Purchaser)

Sir,

With reference to your Tender No._____ dated_____

I/We, M/s.confirm and undertake that our Firm have never been under liquidation, court receivership or similar proceedings and never been bankrupt.

We also confirm that our Firm has never been blacklisted/debarred from participating in Tenders by any Central/State Government/PSU or any Organization for any reason.

Name

Designation

Company/Firm Address

Signature

(of Authorized Signatory)

Corporate Seal (where appropriate)

CERTIFICATE

(On the Letter of the Bidder)

I have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India as stated in F. NO.6/18/2019-PPD Dated 23rd July, 2020 issued by Department of Expenditure (MoF);

I hereby certify that this bidder is not from such a country / from such a country, and has been registered with the Competent Authority (Documentary Proof Attached). {Strike-off whichever is not applicable}

I hereby certify that this bidder fulfills all requirements in this regard and is eligible to be considered.

Name

Designation

Company/Firm Address

Signature

(of Authorized Signatory)

Corporate Seal (where appropriate)

Format for declaration by the Bidder for Code of Integrity

&

Conflict of Interest

(On the Letter of the Bidder)

Ref.No: _____

Date: _____

To,

(Name & address of the Purchaser)

Sir,

With reference to your Tender No. _____ dated _____

I/We hereby declare that we shall abide by the Code of Integrity for Public Procurement and have no conflict of interest.

The details of any previous transgressions of the code of integrity with any entity in any country during the last three years or of being debarred by any other Procuring Entity are as under:

- a.
- b.
- c.

We undertake that we shall be liable for any punitive action in case of transgression/contravention of this code.

Name

Designation

Company/Firm Address

Signature

(of Authorized Signatory)

Corporate Seal (where appropriate)

Format for self declaration by the Bidder for Local Content

(On the Letter of the Bidder)

Ref.No: _____

Date: _____

To,

(Name & address of the Purchaser)

1. In line with Government Public Procurement Order No. P-45021/2/2017-PP (BE-II) dated 16.09.2020 and its amendments, we hereby certify that we M/s _____ are local supplier meeting the requirement of minimum local content i.e., _____% against CBI GeM Bid No..... dated We qualify as a _____ (Class-I/Class II) local supplier. Detail of locations at which local value addition is/will be made for items as follows:

1.-----

2.-----

3.-----

Etc.

2. We also certify that we have used the below mentioned mechanism to calculate the local content as per information given by DPIIT at <https://dpiit.gov.in/sites/default/files/RTI%20FAQ.pdf>.
3. Local content = ((Sale price of "X1" - Value of imported content in "X1") + (Sale price of "X2" - Value of imported content in "X2") + (Sale price of "X3" - Value of imported content in "X3")) * 100/ (Sale price of "X1" + Sale price of "X2" + Sale price of "X3"). Where, "Sale price" means price excluding net domestic indirect taxes and "Value of imported content" means price of imported content inclusive of all customs duties.
4. We further certify that the cost of transportation, insurance, installation, commissioning and training and after sales service support like AMC/CMC etc. will not be taken into account for calculating local content in any equipment.

5. We also understand, false declarations will be in breach of the code of integrity under rule 175(1)(i)(h) of the General Financial Rules for which a bidder or its successors can be debarred for up to two years as per Rule 151(iii) of the General Financial Rules along with such other actions as may be permissible under law.

Name

Designation

Company/Firm Address

Signature (of Authorized Signatory)

Corporate Seal (where appropriate)

Format for declaration by the Bidder for Fall Clause

(On the Letter of the Bidder)

Ref.No: _____

Date: _____

To,

(Name & address of the Purchaser)

Sir,

With reference to your Tender No. _____ dated _____

I/We hereby declare that I/We have not supplied/are not supplying the similar products, systems or subsystems at a price lower than that offered in the present bid in respect of any other Ministry/Department of the Government of India.

We undertake that if it is found at any stage that the similar system or sub-system was supplied by us to any other Ministry/Department of the Government of India at a lower price, then that very price, with due allowance for elapsed time, will be applicable to the present case and the difference in the cost would be refunded to CBI, even if the contract has already been concluded.

We shall strive to accord the most favoured customer treatment to CBI in respect of all matters pertaining to the present case.

Name

Designation

Company/Firm Address

Signature

(of Authorized Signatory)

Corporate Seal (where appropriate)